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Collective Agreement

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The collective agreement contains the labor law rules (contract, leave, wages...) applicable to a sector of activity. Who is covered by a collective agreement? How is the collective agreement applicable to the company determined? Does an employer have to apply a collective agreement? How is the employee informed of the collective agreement applicable to the company? We're doing an update on the regulations.

What is a collective agreement?

A collective agreement is a written agreement negotiated between representative trade union organizations (<https://www.service-public.gouv.fr/particuliers/vosdroits/F34774?lang=en>) and employers or groups of employers.

Each collective agreement is identified by an IDCC number (collective agreement identifier).

In particular, it lays down working conditions, wages, paid leave, the rights and obligations of employers and employees and adapts the rules of the Labor Code to the specific situations of the sector concerned.

The collective agreement contains a basic text, supplemented year after year by agreements and/or addenda and annexes.

The provisions of the collective agreement may be more favorable to the employee than the Labor Code. For example, working hours may be less than the legal 35 hours or severance pay may be higher than legal compensation (<https://www.service-public.gouv.fr/particuliers/vosdroits/F987?lang=en>).

The collective agreement may also contain provisions that the Labor Code does not provide for, such as additional bonuses or leave.

Who is covered by a collective agreement?

Where a collective agreement applies to a company, all employees of the company who are bound by a contract of employment (**CSD**, trial period, **DTA**, etc.) are concerned.

A collective agreement is called **constraining**, i.e. it must be applied by all parties who have signed it.

Where it has been subject to extension procedure by the minister responsible for labor, the collective agreement is **summerndue**. It then becomes **obligatory** for all employers and employees in the sector, whether or not they are members of the signatory trade unions.

However, some employees, such as **VRP** for example, may be excluded from the scope of the convention because they have a specific status.

The vast majority of sectors of activity and the companies associated with them are covered by a collective agreement, regardless of the number of employees.

How is the collective agreement applicable to the company determined?



The applicable collective agreement shall be the one to which it is subject **the main activity** by the employer.

The code **NAF** (or code) **EPA**, assigned by the **Insee** when the company is created, is an indication of this main activity, and therefore of the applicable collective agreement.

If this code refers to more than one collective agreement, each field of application must be checked.

A simulator is used to search for the collective agreement with the company's name or Siret number:

Find your collective agreement

(https://code.travail.gouv.fr/outils/convention-collective?src_url=https://service-public.fr/particuliers/vosdroits/F78)

What is the scope of a collective agreement?



The scope of a collective agreement is determined in the agreement by the signatories.

This scope may be **geographically limited** (national, regional or local) **and/or to the whole of one or more sectors of activity or to a company**.

It may apply to all employees or only to certain categories of employees (workers, supervisors, managers).

Most collective agreements are national: **national collective agreement** (NCC).

How long is a collective agreement valid?



A collective agreement is usually of a duration **undetermined**.

Where it is fixed-term, the duration shall be specified in the agreement by the Parties.

At the end of the period, the collective agreement must be extended or rewritten.

This period may not exceed 5 years.

Does an employer have to apply a collective agreement?



Yes, every **member employers** to an employers' organization which is a signatory to the agreement **shall apply** the collective agreement.

Where the collective agreement is **extent** (i.e. where it has been subject to extension procedure by the minister responsible for labor), it applies to all employers engaged in an activity falling within its professional and territorial scope even if they are not members of one of the signatory organizations.

Employees may request the application of the collective agreement and its provisions from their employer.

If the employer does not comply with the provisions of the collective agreement, the employee may refer the matter to the labor council (<https://www.service-public.fr/particuliers/vosdroits/F2360?lang=en>) .

If the employer refuses to apply the agreement, the unions may also collectively bring the matter before the court.

Who shall I contact

Judicial Tribunal  (<http://www.annuaires.justice.gouv.fr/>).

Please note

Tickets may be issued by the Labor Inspectorate for non-compliance with the provisions of the Convention.

How are employees informed about the applicable collective agreement?



If an agreement is applicable to the company, the employer must inform the employees.

The employer provides them with a document **written** informing them of the treaty texts applicable in the company. That document is being provided **not later than 1 month after hiring**.

If an employee has already been hired and does not have this information, he or she can request it at any time from his or her employer. The latter must answer to the employee in a **1-month period**.

Please note

One branch agreement (or a professional agreement) may lay down different rules on the conditions for informing employees.

The employer has an obligation to make available to employees a copy of the collective agreement applicable to the company. He shall keep this copy up to date.

The employer shall also provide a copy of these texts to the staff representative institutions or to the following persons:

- Social and Economic Committee (ESC) (<https://www.service-public.gouv.fr/particuliers/vosdroits/F34474?lang=en>).
- Social and Economic Committee for Establishment
- Union Delegate
- Employee mandated by a trade union organization

Please note

The title of the convention **must appear on the pay slip**. It may also be mentioned on the contract of employment.

Each year, the employer must provide the employee representatives with a list of the changes made to the collective agreements applicable in the company. If there are no employee representatives, it shall communicate this information directly to employees.

How do I view a collective agreement?



There are several possibilities for consulting a collective agreement.

On the website Legifrance.gouv.fr (free access)

The procedure for consulting the collective agreement differs depending on whether the collective agreement is extended or not.

The collective agreement is extended

National collective agreements **scopes** as well as their addenda and annexes are available on **Legifrance**, heading " **National law in force** ", " **Collective agreements** ", " **Industry agreements and collective agreements** ':

Search Extended Collective Agreement (<https://www.service-public.gouv.fr/particuliers/vosdroits/R2970>).

The collective agreement is not extended

Collective agreements **not extended** are available in the **Official Bulletin of Collective Agreements**, also available on the website [legifrance.gouv.fr](https://www.legifrance.gouv.fr), under the heading " **Official Publications** ", " **Official Bulletins of Collective Agreements** ':

Search for an unextended collective agreement (<https://www.service-public.gouv.fr/particuliers/vosdroits/R66129>).

Order a digital version on the Vie-publique.fr website (paid access)

Collective agreements are published as accessible PDFs on the Vie-publique.fr website.

Order a digital collective agreement (<https://www.service-public.gouv.fr/particuliers/vosdroits/R15651>).

On the spot

At the workplace

The method of informing employees (and employees' representatives) about the applicable treaty law in the company is defined by industry agreement or professional agreement.

In the absence of other clauses in an agreement or agreement, the employer must:

- Give the employee an information notice on the treaty texts at the time of hiring
- Make available to employees at the workplace 1 up-to-date copy of the text of the collective agreement
- Update a copy of this text on the intranet (if it exists in the company)

Reminder

The employer must communicate to the employees by any means (including posting) a notice containing the reference to the collective agreement on which the establishment depends. This notice must specify the conditions for consultation of the agreement at the workplace.

At the Labor Inspectorate

To the Departmental Directorate for Employment, Labor and Solidarity (DDETS or DDETSPP) on which the company depends.

Who shall I contact

Departmental Directorate for Employment, Labor and Solidarity (DDETS or DDETS-PP)

<https://dreetts.gouv.fr/> (<https://dreetts.gouv.fr/>).

Search for DDETS on the interactive map by clicking on the **department** desired.

Find your collective agreement

(https://code.travail.gouv.fr/outils/convention-collective?src_url=https://service-public.fr/particuliers/vosdroits/F78?lang=en)

Who can help me?

Find who can answer your questions in your region

Statute and miscellaneous references

Labor Code: Articles L2221-1 to L2221-3

(https://www.legifrance.gouv.fr/codes/section_lc/LEGITEXT000006072050/LEGISCTA000006177925?lang=en).

Subject matter, content, scope and duration of collective agreements

Labor Code: Article L2222-4 (<https://www.legifrance.gouv.fr/codes/id/LEGISCTA000006189513/?lang=en>).

Determination of the duration of agreements

Labor Code: Articles R2262-1 to R2262-5

(<https://www.legifrance.gouv.fr/codes/id/LEGISCTA000018535599/?lang=en>)

Information and communication from the employer on the collective agreement

Labor Code: Article L2262-6 (https://www.legifrance.gouv.fr/codes/article_lc/LEGIARTI000035653106/?lang=en)

Informing employees of amendments to the agreement

Labor Code: Articles R3243-1 to R3243-9

(https://www.legifrance.gouv.fr/codes/section_lc/LEGITEXT000006072050/LEGISCTA000018487280/?lang=en)

Mandatory Pay Advice

Online services and forms



Find your collective agreement (<https://www.service-public.gouv.fr/particuliers/vosdroits/R60805?lang=en>)

Simulator

Search Extended Collective Agreement (<https://www.service-public.gouv.fr/particuliers/vosdroits/R2970?lang=en>)

Search tools

FAQ

How do I view a collective agreement? (<https://www.service-public.gouv.fr/particuliers/vosdroits/F2395?lang=en>)

How to find a collective agreement when hiring a first employee?

(<https://entreprendre.service-public.gouv.fr/vosdroits/F36056?lang=en>)

Additional topics



Collective company agreements (<https://www.legifrance.gouv.fr/liste/acco?lang=en>)

Directorate of Legal and Administrative Information (Dila) - Prime Minister